

26STCV13825 26STCV13825

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Case Number: 26STCV13825 Hearing Date: August 19, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: August 19, 2026

Case Name: Urbina v. Mobilias Insurance

Company, et al.

Case No.: 26STCV13825 Matter: Motion to Compel Arbitration

Moving

Party: Petitioner Juan Carlos

Garcia Urbina

Responding Party: Respondent United States Fire Insurance

Company

Tentative

Ruling: Petitioner Juan Carlos

Garcia Urbina's motion is denied.

On April 30,

2026, Petitioner Juan Carlos Garcia Urbina ("Petitioner") filed his petition

against Respondents Mobilias Insurance Company ("Mobilias") and United States

Fire Insurance Company ("Fire Insurance").

On May 7,

2026, Petitioner filed a Motion to Compel A Single Joint Arbitration. On July 9, 2026, the Court continued the hearing on the motion because Petitioner did not properly serve respondents. At the hearing the Court addressed Mobilitas's opposition in a tentative.

Petitioner

moves for the Court to compel a joint arbitration proceeding with Mobilitas and Fire Insurance. Fire Insurance opposes.

Legal Standard

Code of

Civil Procedure section 1281.3 states that:

A party to an

arbitration agreement may petition the court to consolidate separate arbitration proceedings, and the court may order consolidation of separate arbitration proceedings when:

(1) Separate arbitration

agreements or proceedings exist between the same parties; or one party is a party to a separate arbitration agreement or proceeding with a third party; and

(2) The disputes arise from the

same transactions or series of related transactions;
and

(3) There is common issue or

issues of law or fact creating the possibility of
conflicting rulings by more than one arbitrator or panel of arbitrators.

If all of the

applicable arbitration agreements name the same arbitrator, arbitration panel, or arbitration tribunal, the court, if it orders consolidation, shall order all matters to be heard before the arbitrator, panel, or tribunal agreed to by the parties. If the applicable arbitration agreements name separate arbitrators, panels, or tribunals, the court, if it orders consolidation, shall, in the absence of an agreed method of selection by all parties to the consolidated arbitration, appoint an arbitrator in accord with the procedures set forth in

Section 1281.6.

In the event that the arbitration agreements in consolidated proceedings contain inconsistent provisions, the court shall resolve such conflicts and determine the rights and duties of the various parties to achieve substantial justice under all the circumstances.

The court may exercise its discretion under this section to deny consolidation of separate arbitration proceedings or to consolidate separate arbitration proceedings only as to certain issues, leaving other issues to be resolved in separate proceedings.

This section shall not be applicable to an agreement to arbitrate disputes as to the professional negligence of a health care provider made pursuant to Section 1295.

(Code Civ. Proc., § 1281.3.)

Insurance

Code section 11580.2 establishes certain rules governing uninsured and underinsured motor vehicle insurance policies: "The policy or an endorsement added thereto shall provide that the determination as to whether the insured shall be legally entitled to recover damages, and if so entitled, the amount thereof, shall be made by agreement between the insured and the insurer or, in the event of disagreement, by arbitration. The arbitration shall be conducted by a single neutral arbitrator. An award or a judgment confirming an award shall not be conclusive on any party in any action or proceeding between (i) the insured, his or her insurer, his or her legal representative, or his or her heirs and (ii) the uninsured motorist to recover damages arising out of the accident upon which the award is based." (Ins. Code, § 11580.2, subd. (f).) The provisions of section 11580.2 are deemed to be a part of every uninsured motorist policy. (See *Quintano v. Mercury Casualty Co.* (1995) 11 Cal.4th 1049, 1053 (*Quintano*); *Harford Fire Insurance Co. v. Macri* (1992) 4 Cal.4th 318, 324; *Travelers Indemnity Co. v. Kowalski* (1965) 233 Cal.App.2d 607, 609.)

Analysis

Petitioner

moves for the Court to order one joint arbitration of his action with Mobilias and Fire Insurance.

Preliminary

Issue of Joinder

Petitioner

Ashley Rabelo ("Rabelo") filed a notice of joinder to Petitioner's motion to compel arbitration. While it is permissible for a co-party with identical interests to join on a motion. Here Rabelo did not provide the Court with any argument or basis to allow joinder of the motion.

Thus, the Court denies Rabelo's motion for joinder.

Motion

to Consolidate

Petitioner

moves to consolidate the arbitration proceedings with Mobilias and Fire Insurance into a single proceeding. The Court previously addressed Petitioner's motion and Mobilias opposition at the July 9, 2026, hearing. The Court previously determined that the elements for consolidating the arbitration proceedings were satisfied.

The Mobilias Agreement states that:

9. Same Element of Loss Where the law

permits, we will not pay for any amounts recoverable under this policy by a "Rideshare Driver" who has received, or is entitled to, payment under any:
a. Occupational accident insurance; or b. Driver injury protection insurance.

(Mot., Ex. A, p. 28, (emphasis added).)

While the Fire

Insurance policy specifies:

Certificate

DEFINITIONS This document, which is a legal contract between Policyholder and Us to provide coverage for Occupational Accidents.

(Petition, Fire Insurance Policy, p. 4 (emphasis added).)

While Petitioner and Mobilias agree to a joint arbitration, Petitioner is required to satisfy the elements under Code of Civil Procedure, section 1281.3, to compel Fire Insurance to a consolidated arbitration. Fire Insurance opposes a joint arbitration proceeding.

Fire Insurance contends there is a lack of common issues of law or fact. Fire Insurance argues that the arbitrator in its proceeding is to determine "whether the incident qualifies as a covered "occupational accident," whether particular charges were physician-ordered and "medically necessary," whether those charges are "reasonable" within the policy's meaning, and whether they fall within the OAI policy's 104-week benefit period." (Opp., 4:21-24.)

"Uninsured and underinsured motorist policies are governed generally by section 11580.2, which requires automobile liability insurers to offer insurance for damages or wrongful death caused by both uninsured and underinsured motorists. (section 11580.2, subds. (a)(1) & (p)(7).) The provisions of the statute are deemed part of every uninsured and underinsured motorist policy." (Quintano supra, 11 Cal.4th at p. 1053.)

"Section 11580.2, subdivision (f), "read literally, requires arbitration of two issues only: (1) whether the insured is entitled to recover against the uninsured motorist and (2) if so, the amount of the damages." (Bouton v. USAA Casualty Ins. Co. (2008) 43 Cal.4th 1190, 1201.)

Here, the resolution of the arbitration proceedings is the solution to different outcomes. The arbitrator in Mobilias is to determine liability and uninsured and underinsured motorist coverage. While Fire Insurance provides Occupational Accident Insurance, and even though the same accident led to Petitioner's claims, the legal issues are different, and Petitioner cannot satisfy all elements to consolidate the arbitration proceedings. Fire Insurance

does not agree to consolidate the proceedings.

Thus,

Petitioner's motion to consolidate arbitration proceedings is denied.

Conclusion

Petitioner

Juan Carlos Garcia Urbina's motion to consolidate arbitration proceedings is denied.